

Tentative Rulings

August 13, 2026

Department S-17

Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

10. *Castro's Cleaning Servs. Co., Inc., v Ryan Peacock, Inc., et al*, Case No. CIVSB2505507
Motion to Compel Responses from Ryan Peacock, Inc. to Special Interrogatories, Set One
8/13/26, 9:00 a.m., Dept. S-17

The Court would inquire with movant as to whether the motion is now **MOOT**, given the procedural posture of the case. (See Notice, 6/22/26 [striking Ryan Peacock, Inc. answer and cross-complaint for failure to prosecute].)

11. *Fouse v. Behavior Autism Therapies, LLC*, Case No. CIVSB2428112
Defendant's Motion to Compel Arbitration
8/13/26, 9:00 a.m., Dept. S-17

The Court would **CONTINUE** the motion and allow Plaintiff a sur-reply to address new evidence raised for the first time in the reply. In this matter, movant forwarded new evidence in conjunction with its reply. Plaintiff objects on that basis.

"The general rule of motion practice . . . is that new evidence is not permitted with reply papers." (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537; *Espejo v. SCPMG* (2016) 246 Cal.App.4th 1047; *Ruiz v. Moss* (2014) 232 Cal.App.4th 836.) However, a trial court is "vested with a sound discretion as to the permissible scope of evidence offered in rebuttal." (*Tesoro del Valle Master Homeowners Assn. v. Griffin* (2011) 200 Cal.App.4th 619, 641.)

Here, the Court notes the strong public policy favoring the determination of cases on the merits, and it would continue this hearing to allow adequate due process with Plaintiff a sur-reply.

12. *Robertson v. City of Rialto, et al*, Case No. CIVSB2325118
Defendants' Motion to Seal
8/13/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court would **GRANT**, in part, and seal only that portion of the at-issue deposition transcript (currently lodged as Exhibit 6) that discloses confidential closed session discussions regarding a councilmember's government claim. The Court would **ORDER** the existing Exhibit 6 returned and would have movants file Exhibit 6 with the salient pages filed *separately* under seal. The relevant pages are 23-25 and 27.)¹

Case Summary

In essence, this is an invasion of privacy case. Plaintiff, who is the mayor of Rialto, alleges that Defendant City and its Police Department has permitted at least ten unauthorized California Law Enforcement

¹ The Court notes that movants identify citations on pages 28 through 31; however, those pages were not provided under the currently lodged Exhibit 6.

Telecommunications System (CLETS)² searches involving her from 2015 to 2020. She alleges that the unauthorized CLETS searches were done to determine her residency as an elected official and for other unauthorized purposes. Thus, she filed suit against the City on October 6, 2023, alleging causes of action for (1) intrusion into private affairs; (2) violation of the Comprehensive Computer Data and Access Fraud Act; (3) negligent supervision; (4) violation of the Information Practices Act; (5) intentional infliction of emotional distress (IIED); (6) negligent infliction of emotional distress (NIED); and (7) violation of the Bane Civil Rights Act.

Statement of Law

Unless confidentiality is required by law, all court filings are presumed to be public. (Rules of Court, rule 2.550(c).) In order to seal a court filing, the court must make five express findings: (1) there exists an overriding interest that overcomes the public's right of access; (2) the overriding interest supports the sealing; (3) there is a substantial probability that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored to the need; and (5) there are no less restrictive means to protect that overriding interest. (Cal. Rules of Court, rule 2.550(d).)

Analysis

Defendants move to seal some portions of an at-issue deposition transcript submitted in furtherance of their motion for summary judgment (MSJ) because it infringes upon non-party privacy rights or is protected by the closed session privilege. More specifically, Defendants contend that the deposition testimony in Exhibit 6 should be sealed because: (1) it discloses confidential information about a councilmember's government claim alleging CLETS misuse and (2) it identifies the whistleblower upon which claims rest. (Lustig Decl., ¶12.)

Movants rely primarily on Government Code section 54963(a) and Evidence Code section 1040 for support. In short, Section 54963(a) prohibits disclosure of information that has been acquired by being present in a governmental closed session unless the legislative body authorizes such disclosure. Section 1040 relates to a public entity's privilege over "official information" acquired in confidence by a public employee in the course of duty and "not open, or officially disclosed, to the public prior to the time of the claim of privilege is made." (Evid. Code, § 1040(a).)

At a minimum, at least some of the testimony in the lodged deposition transcript discloses the content of a confidential closed session discussion regarding a government claim. While the claim itself may not be privileged, the communication in closed session – held in part to obtain advice of counsel – is confidential under the Brown Act and under the attorney-client privilege. The Court would, therefore, find there is an overriding interest that overcomes the public's right to access and that would support sealing. However, the Court would more narrowly tailor the proposed sealing to limit it to the specific pages containing those disclosures.

²CLETS is a network used by law enforcement to access national databases such as FBI and DMV records, among others.